Media Censorship in Orbán's Hungary: A Failure of Brussels

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I. Introduction

Experts agree that three subtypes of media censorship exist, with one being the most widely discussed: political censorship. The most prominent is political censorship, characterized by the state vetting media outlets either before or after a piece is written or a news show occurs, for example[1]. The state requires that media outlets seek their permission to publish, either by establishing thinly-veiled censorship bodies or by codifying laws that dictate the speech allowed or not allowed to be published. This subtype of media censorship has been observed in the case of Orbán's Hungary[2]. In fact, according to the World Press Freedom Index of 2019, Hungary was rated in a dismal 87th place among 180 countries for freedom of speech and freedom of opinion, standing out among European Union ("EU") states as particularly poor[3].

The EU, for its part, has recognized Hungary's pattern of media censorship as problematic. In making up for initial failures to ensure comprehensive, codified media freedom as a prerequisite for joining the Union, the EU in 2022 passed the European Media Freedom Act (EMFA), which aims to tackle "national restrictions related to sources and communications of journalists as service providers, interference in the operation of media service providers, the risk of state interference in public service media, [and] the market operations of rogue operators" in member states[4]. The governing bodies of the EU, specifically, are attempting to standardize the right to a plurality of news content across the union, directly targeting illiberal practices in

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[1] (Gosztonyi, 2021)

[2] (Gosztonyi, 2021)

[3] (Gosztonyi, 2021)

[4] (European Commission, 2022)

countries with a track record of these behaviors, such as Hungary or Poland[5]. Further, the law explicitly prohibits governments from interfering or influencing editorial policies, harassing media service providers or their families and employees, and using spyware against media service providers[6]. These comprehensive bans are clearly directed, in part, toward Orbán's government, which has dismantled media freedom and pluralism by strategically locating and using loopholes in EU legislation, shifting the nature of assaults on the freedom of the media[7].

While the EMFA is certainly welcome in the current landscape of the EU, one characterized by a drastic range in media quality and diversity of opinion, is the reform enough? Does it effectively close the loopholes that Orbán has used to evade EU rules in the past? If not, what can the European Commission do to close these loopholes in the future? In this paper, I will begin by describing the development and appearance of media censorship in Hungary, and then I will attempt to outline the implications that Hungary's history of media censorship has for future EU anti-censorship legislation.

II. Frameworks and Agendas: The Development and Appearance of Media Censorship in Hungary

i. The Development of Media Censorship: Theoretical Frameworks

Three different theoretical frameworks help describe the development of media censorship in Hungary. These are the so-called institutional framework, the behavioral framework, and the attitudinal framework[8]. In analyzing censorship and proffering implications, it is important to understand the frameworks at use behind the arguments made, which is why the following section briefly describes these three frameworks and offers an explanation as to why

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[5] (European Commission, 2022)

[6] (European Commission, 2022)

[7] (Griffin, 2020)

[8] (Bajomi-Lázár, 2003)

each serves as a partial piece to the puzzle that is analyzing the rise of media censorship in Hungary.

(i.1) The Institutional Framework

The institutional framework asserts that emerging institutions dedicated to safeguarding the separation of media institutions from the state apparatus in post-communist Hungary were lacking or even not established[9]. Thus, within this understanding, Hungary lacked the institutional requirements for the consolidation of media freedom[10]. A proper transition from the style of media control found in European Marxist-Leninist states to a free press demands the deconstruction of the communist structure *and* the construction of new legislation and organizations with regard to the media[11]. Thus, while Hungary succeeded at deconstructing the communist structure, it failed to institutionalize proper new structures or reforms, leaving behind a power vacuum waiting to be filled by a leader like Orbán.

(i.2) The Behavioral Framework

The behavioral framework suggests that the politically non-democratic post-communist Eastern European political elites put persistent political pressure on media organizations[12]. Thus, the behavioral threshold for the establishment of media freedom in Hungary was lacking[13]. Simply put, elites in 1990s and 2000s Eastern Europe wielded their status to influence and put pressure on media organizations. While the framework is interesting, it fails to explain why other post-communist European states do not display the same censorship tendencies as Hungary. Interestingly, the framework doesn't clash with the institutional framework; both the institutional and behavioral frameworks are able to complement one another, both explaining parts of a phenomenon.

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[9] (Bajomi-Lázár, 2003)

[10] (Bajomi-Lázár, 2003)

[11] (Milton, 1997 in Bajomi-Lázár, 2003)

[12] (Bajomi-Lázár, 2003)

[13] (Bajomi-Lázár, 2003)

(i.3) The Attitudinal Framework

The attitudinal framework explains that the persistence of political pressure on media organizations stems from a lack of responsiveness to censorship concerns from the general public. Thus, the lack of public backlash served as a signal to the Orbán regime that media censorship efforts would not irreparably destabilize the regime or threaten his hold on power[14].

ii. The Appearance of Media Censorship in Hungary

With a brief understanding of how media censorship has rooted itself and developed in Hungary, it is now imperative to understand what Hungarian censorship looks like in practice. As an EU member state, Hungary is bound by the rules of the EMFA. To locate the loopholes Orbán has used time and time again in his efforts to censor media, one must understand what this censorship looks like on the ground. In Hungary's case, this means examining both journalistic self-censorship and government-pursued censorship.

(ii.1) The Self-Censorship Phenomenon: адекватность

As the behavioral framework alludes to, behavioral patterns at the institutional level have occasionally continued beyond the fall of the iron curtain and the transition from communism in Hungary. One of these trends is адекватность (*adekvatnost*'), a term popularized in the Soviet Union's media sphere that describes a strategy employed by journalists, wherein the correspondent with a hold on the strategy had a 'feel for the game' of censorship and the 'right instinct'[15]. The term describes journalists exercising a discretionary level of self-censorship, earning them favor with—or at least sparing them of harassment from—the regime.

In Hungary, respondents to a survey conducted by researchers Schimpfössl and Yablokov described адекватность as a "mandatory quality of [those] who aspire to become top journalists[16]." This quality turns media into a political landscape instead of a meritocracy, one where those with the best feel for the landscape are favored over those with a genuine talent for journalism. адекватность, in this sense, serves as a means of media censorship in Hungary, as it

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[14] (Bajomi-Lázár, 2003)

[15] (Schimpfössl and Yablokov, 2020)

[16] (Schimpfössl and Yablokov, 2020)

effectively deters journalists from 'stirring the pot'. Good journalists, in the eyes of Hungarian political game-makers, are those who understand which questions are to be avoided without requiring any detailed instruction from their interviewees[17].

Further research from Schimpfössl and Yablokov has shown that by the middle of the 2010s, over 33% of Hungarian journalists claimed that they had written with адекватность in mind[18]. Measures they classified as connected to the trend of адекватность included holding back information that would be considered 'at odds' with one's company's editorial stance[19]. With this in mind, it is painfully clear that while self-censorship is widely practiced in Hungary, it is not of journalists' pure free will; it is coupled with coercion from their employers—who are in turn being coerced themselves—and fear of punishment. Such is the natural response to *Fremdzwänge*, a term describing the pressure perceived by journalists to be externally imposed on them[20].

(ii.2) The 'Orbán Model': Hungarian Media Legislation and Oligarchy

The Hungarian media system isn't just dampened by instances of self-censorship. Akin to the institutional theoretical framework discussed earlier, Hungary's system was built to "deliberately deter scrutiny" from the leader[21]. The legislation enacted to further censor the media avoids the explicitly banned practices in the EMFA, finding loopholes in the rules of the media market to maintain plausible deniability while also acquiring power in the market[22]. The Orbán model is composed of four elements: the forcible closure or government takeovers of independent media outlets, either directly or indirectly pursued by the state; market manipulation

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[17] (Schimpfössl and Yablokov, 2020)

[18] (Schimpfössl and Yablokov, 2020)

[19] (Schimpfössl and Yablokov, 2020)

[20] (Elias in Schimpfössl and Yablokov, 2020)

[21] (Griffen, 2020)

[22] (Griffen, 2020)

via abuse of regulation and resources by the state; the exclusion and 'cancelling' of independent journalists; and the preservation of a veneer of media freedom[23].

The Orbán model emerged just before and during Viktor Orbán's second term, which began in 2010. During this term, his legislative efforts relied on the use of media laws coupled with the control of both the media market and media regulatory organizations[24]. This process was catalyzed by the rise of nationalist sentiment in Hungary, especially following the 2015 migration crisis. Orbán leveraged these sentiments—which are verifiably associated with media distrust and increased censorship of the media[25]—to encourage increased media restrictions from the top-down[26].

Orbán conspired to eliminate the independent media in Hungary before his second term began. In the aftermath of the worldwide 2008 financial crisis, he encouraged his wealthy donors to invest in and purchase media outlets across Hungary, seeking to build a loyal oligarchy in the media market[27]. The legislation passed by Orbán after his 2010 victory—the so-called Hungarian Media Law (HML)—allowed regulatory bodies to distort the media market in favor of state-approved media[28]. It further established a media council empowered to fine media outlets for "unbalanced or insulting" coverage of "nations, communities, national, ethnic, linguistic, and other minorities or any majority, as well as any church or religious groups"[29]. Further, Orbán openly delegitimized and excluded independent journalists through 'cancellations,' disproportionate airtime, and incomplete information[30]. Beyond the legislation passed in 2010, in

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[23] (Griffin, 2020)

[24] (Polyák, 2019)

[25] See FIGURE 1. SHIFT FROM COSMOPOLITANISM TO NATIONALISM AND MEDIA RESTRICTIONS IN HUNGARY.

[26] (Anderson, Commins and Whitten-Woodring, 2023)

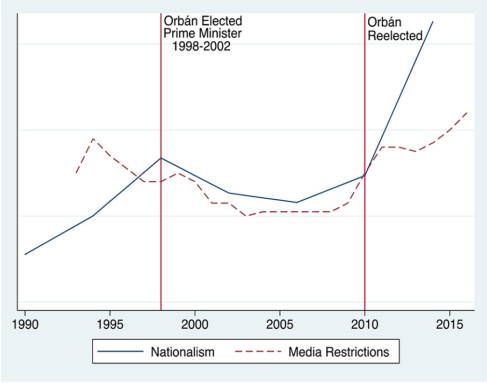
[27] (Anderson, Commins and Whitten-Woodring, 2023)

[28] (Anderson, Commins and Whitten-Woodring, 2023)

[29] (Press Freedom Act, Article 17, 2010)

[30] (Anderson, Commins and Whitten-Woodring, 2023)

FIGURE 1. SHIFT FROM COSMOPOLITANISM TO NATIONALISM AND MEDIA RESTRICTIONS IN HUNGARY (ANDERSON, COMMINS AND WHITTEN-WOODRING, 2023).



This figure depicts the changes in nationalist mood and media restrictions in Hungary. These variables have been normalized for purposes of comparison.

2020 the Hungarian Parliament passed the Coronavirus Act, which punishes those who 'spread misinformation' with up to five years of imprisonment[31]. In an interview, one Hungarian journalist even admitted that they were 'warned' to not publish what they had heard in an interview, at threat of job termination and imprisonment[32].

III. Implications for Brussels: Securing Democratic Ideals During EU Expansion

With an understanding of how media censorship took root in Hungary, as well as the way Orbán weaponizes legislation and evades the EMFA, it is imperative to discuss how the EU has

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[31] (Serdült, 2020)

[32] (Serdült, 2020)

failed at curtailing media censorship and what the European Parliament is able to do to rectify its past failures.

i. The Failures of the Copenhagen Criteria

The Copenhagen Criteria describe the required standards for countries that aim for EU accession. The rules are incredibly simple but vague—perhaps necessarily so as the EU has aimed for expansion. The trouble with the accession process lies with the concept that while standards exist for accession, the institutions in place for enforcing the criteria and the legislation for standardizing EU reforms are much less clear[33]. Put more simply, once you're in the club, you're in, and the methods the EU has to ensure that countries maintain the standards they met for initial accession are lackluster at best and complete failures at worst.

ii. Successes and Failures of the European Media Freedom Act

The EU, for its part, has recognized the inherent danger that countries like Hungary pose to the democratic norms and ideals of the Union as a whole. Yet, in simply analyzing its legislative reforms, one could be forgiven for believing that the EU lacks the political will to reign in its member states[34]. Rather than imposing strict disciplinary measures on so-called 'illiberal' countries, the EU *seems* to cover for them[35].

One of the EU's recent legislative attempts to reverse this assumption was the implementation of the EMFA. Yet, with an understanding of the ways in which Hungarian media censorship occurs, how impactful *is* the EMFA? The reform bans, in explicit text, any member state from harassing media service providers, their families, or their employees. But in Orbán's Hungary, media service providers are most often controlled by his allies, ones who do not play an official role in the state. The EMFA, for its part, fails to address this type of oligarchical system, as it only targets state-employed actors and ignores state-loyal ones. The EMFA also intends to indirectly decrease instances of journalistic reliance on адекватность via this ban, but if journalists have to fear not only backlash from the state but also from the state's allies, who

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[33] (Gimson, 2019)

[34] (Sargentini in Gimson, 2019)

[35] (Sargentini in Gimson, 2019)

control their company and employment, the self-censorship phenomenon will continue to occur. Further, the EMFA explicitly bans the state practices of interfering or influencing editorial policies; here, the same issue as before presents itself. In Hungary, the government essentially outsources the dirty work of influencing editorial policies by ensuring that its allies control the media market. In this way, the good intentions of the EMFA fail to drastically affect Hungarian media censorship, instead reinforcing media freedom in already journalistically-free member states by codifying laws at the EU level that already existed at the state level.

This isn't to say that the EMFA is a total failure when it comes to Hungary. One piece of the legislation stands out in its embrace of modern technological realities: the ban on using spyware against media service providers. By limiting firsthand data that government institutions in member states are able to access from media entities through the use of spyware, the EMFA makes it harder for governments to anticipate journalistic backlash or to spy in on the lives of media workers. This ban may provide a sense of comfort—albeit small—to Hungarian journalists. Though they still may have to publicly conceal any negative journalism towards the state, they too may, at least, have some assurance that they are privately safe to express negative feelings about the state without a guaranteed risk to their employment.

iii. Implications for the European Parliament

The prospect of past EU legislation failing to meaningfully impact the existence of media censorship in Hungary implies that further actions should be taken by the EU. One solution floated by many is to invoke Article 7 of the Lisbon Treaty, which is triggered when there is "a clear risk" of a member state breaching EU values and which would revoke a country's voting rights[36]. The trouble with Article 7 is that it requires unanimous consent from the other member states, a tough threshold to reach[37].

Others, such as Hungarian journalist Anita Kőműves, have asserted that the threshold required to invoke Article 7 would be nearly impossible to reach and that the situation in Hungary requires more immediate action. She believes that the solution that would make the

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[36] (Gimson, 2019)

[37] (Gimson, 2019)

most impact for Hungarian journalists would be for Brussels to use existing EU competition law to challenge the Hungarian loyalist monopoly on media ownership[38]. This different approach could be implemented quickly, as the underlying legislation supporting it is already in place, and the approach targets the non-state actors that Hungary uses to do the work of censorship.

Others agree that refocusing efforts to curb censorship on economics would prove to work better in practice. The chief executive of the Human Rights House Foundation, Maria Dahle, believes that all EU funding should be conditional, wherein states that violate the rule of law or challenge EU ideals run the risk of their financial support being revoked[39]. Though this approach could see short-term success, others warn of the long-term effects it could have on the electoral successes of populist, nationalist, and euroskeptic parties, increasing the cycle of media censorship throughout the EU[40].

IV. Conclusion

Throughout this text, I have examined why and how media censorship developed and occurs in Hungary. In this context, I have analyzed the ways that EU legislation has succeeded and failed in tackling the specific problem of media censorship in Hungary and evaluated the different approaches to the problem that have been discussed in the wake of the EU's failures to radically improve media freedoms in one of its own member states. While not endorsing one of the methods introduced in Section III.iii, it is clear that a different approach is needed from the EU if it truly hope to enhance media freedom in Hungary. Simply relying on legislation that targets the state fails to address the more oligarchically-appearing situation in Hungary. Yet, financially targeting member states that violate media freedoms could have a long-term negative impact on EU institutions through the election of populist parties in member states. This dichotomy represents a niche for further research into the issue; determining the net effect of the different approaches introduced in Section III.iii would provide more clear answers to

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[38] (Kőműves in Gimson, 2019)

[39] (Dahle in Gimson, 2019)

[40] (Mortera-Martinez, Kinkel in Gimson, 2019)

policymakers in the EU, catalyzing change for independent Hungarian journalists and media service providers.

Bibliography

Anderson, N., Commins, A. and Whitten-Woodring, J. (2023). Fostering Bottom-Up Censorship From the Top-Down: Nationalism and Media Restrictions. The International Journal of Press/Politics, p.194016122311723-194016122311723. doi:https://doi.org/10.1177/19401612231172306.

Bajomi-Lázár, P. (2003). Freedom of the Media in Hungary, 1990–2002. [online] Central European University, pp.44–60. Available at: https://politicalscience.ceu.edu/sites/politicalscience.ceu.hu/files/basic_page/field_attachment/bajomithesisedited.pdf.

European Commission (2022). Proposal for a REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL establishing a common framework for media services in the internal market (European Media Freedom Act) and amending Directive 2010/13/EU. [online] EUR-Lex: Access to European Union Law. Available at: https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:52022PC0457.

Gimson, S. (2019). Press freedom: EU blind spot? Many European countries are violating freedom of the press; why is the EU not taking it more seriously? Index on Censorship, 48(1), pp.110–112. doi:https://doi.org/10.1177/0306422019840207.

Gosztonyi, G. (2021). Censorship and Law in Hungary in the Past. Revista Română de Istoria Dreptului / Romanian Journal of Legal History, [online] 1(1), pp.37–46. Available at: https://www.rrid.ro/index.php/rrid/article/view/8.

Griffen, S. (2020). Hungary: a lesson in media control. British Journalism Review, 31(1), pp.57–62. doi:https://doi.org/10.1177/0956474820910071.

Polyák, G. (2019). Media in Hungary: Three Pillars of an Illiberal Democracy. In: Public Service Broadcasting and Media Systems in Troubled European Democracies. Palgrave Macmillan, pp.279–303. doi:https://doi.org/10.1007/978-3-030-02710-0_13.

Schimpfössl, E. and Yablokov, I. (2020). Post-socialist self-censorship: Russia, Hungary and Latvia. European Journal of Communication, 35(1), pp.29–45. doi:https://doi.org/10.1177/0267323119897797.

Serdült, V. (2020). Inside story: Hungary's media silence: What's it like working as a journalist under the new rules introduced by Hungary's Viktor Orbán? How hard is it to report? Index on Censorship, 49(2), pp.64–66. doi:https://doi.org/10.1177/0306422020935806.